

TENTATIVE RULING:

Parties to appear.

17. 9:00 AM CASE NUMBER: MSC19-02076
CASE NAME: MAUREEN MBADIKE-OBIORA, MD VS. CENTRAL EAST BAY IPA, MEDICAL GROUP INC
HEARING ON SUMMARY MOTION FILED BY: CENTRAL EAST BAY IPA, MEDICAL GROUP INC
FILED BY:

TENTATIVE RULING:

Parties to appear.

18. 9:00 AM CASE NUMBER: MSC21-02364
CASE NAME: HOOKER VS. MICHAEL C. STEAD INC.
***HEARING ON MOTION IN RE: ATTORNEYS FEES, COSTS, AND EXPENSES**
FILED BY:

TENTATIVE RULING:

The hearing is continued to December 22, 2025 at 9:00 a.m. in Department 9.

19. 9:00 AM CASE NUMBER: MSC21-02364
CASE NAME: HOOKER VS. MICHAEL C. STEAD INC.
***HEARING ON MOTION IN RE: STRIKE, OR IN THE ALTERNATIVE, TAX COSTS**
FILED BY:

TENTATIVE RULING:

The hearing is continued to December 22, 2025 at 9:00 a.m. in Department 9.

20. 9:00 AM CASE NUMBER: MSC22-00134
CASE NAME: RODRIGUEZ VS. STRONG
HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT. FILED BY MICHELLE STRONG.
FILED BY:

TENTATIVE RULING:

Before the Court is a demurrer by defendants Michelle Strong and LaSalle Strong to plaintiff's first amended complaint. For the reasons set forth, the demurrer on all grounds is **overruled**.

Background

This action arises out of a business dispute over the Firehouse Brew & Grill in Martinez. Plaintiff Rodriguez alleges that in 2019, he and defendant Michelle Strong entered into a partnership, Rocksteady Brewing Company, by which they jointly purchased the Firehouse business, reflected in a General Partnership Agreement executed by the parties on September 5, 2019. (First Am. Compl. ("FAC") ¶¶ 4, 7, 8.) He alleges he loaned Michelle Strong the funds to pay her initial capital share pursuant to terms set forth in the partnership agreement. (FAC ¶¶ 8-10 and Exh. A.) They agreed Michelle Strong would be the general manager of the business and would receive a salary of \$6,000 per month. (FAC ¶ 12 and Exh. A.) Disputes arose concerning the management and operation of the business, giving rise to this lawsuit.

Plaintiff also alleges that he made a separate \$30,000 loan to Michelle Strong and Lasalle Strong in 2017 reflected in a written promissory note executed by the parties, a copy of which is attached as Exhibit B to the FAC. (FAC ¶ 29.) He alleges payments were due under the note beginning June 1, 2018, and no payments were made on the note. (FAC ¶¶ 30, 31.)

The FAC includes four causes of action: common count – money owed based on the capital loaned to Michelle Strong for her purchase of her interest in the business subject to the partnership agreement (1st C/A), accounting for the partnership assets (2nd C/A), breach of promissory note based on the 2017 \$30,000 note attached as Exhibit B (3rd C/A), and a derivative cause of action for breach of fiduciary duty under Corporations Code section 800 against Michelle Strong and Rocksteady as a nominal defendant (4th C/A).

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) (*See also* Code Civ. Proc. § 452.) In ruling on a demurrer, the Court also considers matters of which the Court can properly take judicial notice. (*Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) The Court does not consider evidence outside the pleading, except matters subject to judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

A demurrer must dispose of an entire cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.) As a general matter, demurrers for uncertainty are disfavored. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135; *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695 ["'[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.' [Citations omitted.]"].)

Michelle Strong Declaration in Support of Demurrer

Michelle Strong filed a declaration in support of the demurrer on July 2, 2025 which purports to present evidence disputing allegations of the FAC, with exhibits attached that at least in some

instances may reflect filings made with a government entity but for which no request for judicial notice has been made. " 'On a demurrer a court's function is limited to testing the legal sufficiency of the complaint. [Citation omitted.] "A demurrer is simply not the appropriate procedure for determining the truth of disputed facts." [Citation omitted.] The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable. [Citation omitted.]" " (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114.)

The Court cannot consider the testimony in the Michelle Strong Declaration in ruling on the merits of the demurrer. (*Carloss, supra*, 242 Cal.App.4th at 123; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 [Court is limited to consideration of the complaint and matters of which the Court can take judicial notice in ruling on a demurrer, refusing to consider a proffered declaration].) Further, judicial notice of documents attached to her declaration, even if judicial notice had been requested, does not extend to the truth or proper interpretation of documents where those matters are reasonably disputable. (*See, e.g., StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice of pleadings extends to the fact of the filings but not the truth or interpretation of the content of the filings to the extent reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp., supra*, 148 Cal.App.4th at 113-115 [same].)

Demurring Parties' Meet and Confer Declarations Are Satisfactory

The original hearing on the demurrer was continued for failure by the demurring parties to meet and confer with Plaintiff pursuant to Code of Civil Procedure section 430.41(a). The demurring parties have filed meet and confer declarations pursuant to the Court's October 20, 2025 minute order and have satisfied the statutory meet and confer requirement.

Analysis

Defendants Michelle Strong and Lasalle Strong demur to the FAC on three grounds: (1) that the FAC fails to allege facts sufficient to state a cause of action, a demurrer which addresses by its terms the FAC in its entirety; (2) that "certain" causes of action are barred by the statute of limitations, which, based on the Argument at Section III.A. of the memorandum of points and authorities in support of the demurrer, is a contention directed only to the third cause of action; and (3) that "the causes of action are uncertain, ambiguous, and unintelligible," a special demurrer under Code of Civil Procedure section 430.10(f) which appears to be directed to all of the causes of action of the FAC.

A. Breach of \$30,000 Promissory Note (3rd C/A) and \$50,000 Partner Capital Loan (1st C/A) Are Time-Barred

The demurrer points out that the promissory note attached as Exhibit B to the FAC is not executed. The FAC, however, expressly alleges that the note was in fact executed by the parties and that Michelle Strong is in possession of the signed note. (FAC ¶ 29.) In ruling on the demurrer, the Court must accept as true these factual allegations, "however improbable they may be." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604; *Universal By-Products, Inc. v. City of Modesto* (1974) 43 Cal.App.3d 145, 151.) As a result, Plaintiff has adequately alleged the existence of a written promissory note signed by defendants, such that the statute of limitations for breach of the written note is four years under Code of Civil Procedure section 337. Demurring defendants recite facts demonstrating the claim is not time-barred: the first payment under the \$30,000 was due on

June 1, 2018 and was allegedly not made, the complaint commencing the action was filed on January 25, 2022 including the claim on the note, and the statute of limitations expired June 1, 2022, four years after the breach. The claim on the \$30,000 promissory note is timely filed within four years.

The initial memorandum in support of the demurrer raised the bar of the statute of limitations only as it applies to the \$30,000 promissory note claim. (MPA ISO Dem. Argument Section III.A.) The demurring parties argued that the alleged \$50,000 loan for Michelle Strong's capital contribution was "unenforceable," but not based on the statute of limitations. (MPA ISO Dem. Argument Section III.B.) In the reply, the demurring parties argue for the first time that the claim based on the \$50,000 loan (1st C/A) is also barred by the statute of limitations, specifically the two-year statute of limitations because the copy of the partnership agreement attached to the FAC is not signed. The argument made for the first time in the reply is improper and violates Plaintiff's due process rights, as Plaintiff did not have an opportunity to respond to the argument in his opposition. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.)

Further, even if the Court considered the argument on the merits, Plaintiff alleges in the FAC that the partnership agreement was in fact signed by the parties, but that Michelle Strong has maintained possession of the executed copy. (FAC ¶ 8.) The Court accepts that factual allegation as true on demurrer. The four-year statute of limitations for a claim based on a written instrument (Code Civ. Proc. § 337) applies, and the complaint filed less than four-years after the partnership agreement was allegedly executed (September 5, 2019) is timely.

The second ground for the demurrer that "certain" causes of action are barred by the statute of limitations is **overruled** for these reasons.

B. Allegations of the FAC Fail to State Facts Sufficient to Constitute A Cause of Action

The demurring parties' contention that the FAC fails to allege facts sufficient to state causes of action against them is directed to the FAC as a whole, not to any individual cause of action. As a result, if the facts alleged in the FAC state any cause of action, this ground for the demurrer must be overruled.

The only basis on which the demurring parties contend the third cause of action for breach of promissory note is deficient is that the claim on the \$30,000 note is allegedly barred by the statute of limitations. For the reasons stated above, the third cause of action on the \$30,000 promissory note is not time-barred.

The sufficiency of the third cause of action to state a cause of action for recovery on the \$30,000 promissory note alone is enough to warrant overruling the first ground stated for the demurrer that the FAC fails to allege facts stating a cause of action against them. However, even if the Court considered the grounds raised by the demurring parties challenging the sufficiency of the allegations supporting the first, second, and fourth causes of action, the Court finds those causes of action are sufficiently pled.

1. Common Count – Money Owed (1st C/A)

Demurring parties contend that the first cause of action is defeated by a 2019 declaration allegedly signed by Plaintiff regarding his investment for a 50% interest in the business. The demurring parties make other factual arguments, including that the funds were transferred to the business and not to Michelle Strong individually. The demurring parties also improperly raise several new arguments in their reply not asserted in the initial papers regarding deficiencies in this cause of action, arguing

among other things that Plaintiff lacks standing to seek to recover the funds subject to the money owed claim because the source of the funds were an entity, Team Maintenance Services, LLC, and alleged inconsistencies in Plaintiff's claims regarding the \$50,000 debt. (The Court does not find inconsistency as argued in the reply, even if the Court were to consider that argument. (See Reply Section II.) the FAC alleges in effect the \$100,000 investment to buy the business was divided into two \$50,000 components, one a loan to the business by Rodriguez and one a loan to Michelle Strong for her half of the purchase capital investment. (See FAC ¶ 10.)

The demurring defendants' factual arguments apparently are based at least in part on evidence presented in the Michelle Strong Declaration, including in part based on the testimony in her declaration and the truth or proper interpretation of the contents of filings that may have been made with a public agency, which cannot be considered by the Court in ruling on the demurrer under the authorities cited above. Further, new arguments made for the first time in the reply as a basis for the demurrer are improper and violate Plaintiff's due process rights. The Court will not consider them. (*Jay v. Mahaffey*, *supra*, 218 Cal.App.4th at 1537-1538.)

2. Accounting (2nd C/A)

"A cause of action for an accounting requires a showing that a relationship exists between the plaintiff and defendant that requires an accounting, and that some balance is due the plaintiff that can only be ascertained by an accounting. [Citations omitted.]" (*Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 179.) An accounting cause of action lies where the plaintiff asserts a right to recover an amount that is not a sum certain or capable of being made certain by calculation. (*Id.*) An accounting cause of action may lie where there is a fiduciary relationship between the parties. (*Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 910.)

Demurring defendants raise factual issues, apparently based in part on the Michelle Strong Declaration and exhibits, contending that Michelle Strong is no longer in control of the financial records for the business as she has been removed, that she has not retained any financial records, and that Plaintiff has access to all the financial records. These factual issues cannot be resolved on demurrer. The FAC alleges facts, taken as true, that Michelle Strong as a partner and general manager of Rocksteady has fiduciary duties to Plaintiff as the other partner, that there are financial disputes over the assets of Rocksteady and payments Michelle Strong allegedly made to herself from the business, that funds are owed to Plaintiff, and that the amount owed can only be ascertained through an accounting. (FAC ¶¶ 12-20, 23-26.) The allegations, accepted as true in ruling on a demurrer, are sufficient to state a cause of action for an accounting.

3. Derivative Claim for Breach of Fiduciary Duty (4th C/A)

The initial pleading in support of the demurrer includes a single-sentence argument that this cause of action is defective "cause Plaintiff fails to show proper standing, does not adequately plead demand futility, and alleges conclusions rather than facts." (MPA ISO Dem. Argument Section III.C.) The argument is not supported either by applicable legal authority or reasoned analysis and may be disregarded on that ground alone. (*Lafferty v. Wells Fargo Bank* (2013) 213 Cal. App. 4th 545, 571-572 ["When a point is asserted without argument and authority for the proposition, 'it is deemed to be without foundation and requires no discussion by the reviewing court.'"]; *Mattco Forge, Inc. v. Arthur Young & Co.* (1997) 52 Cal. App. 4th 820, 850 ["In a page and a half, and with citation to but one case for the general proposition the conduct was despicable, [Cross-Appellant appeals] from the granting

of the directed verdict motion. This cursory treatment requires no discussion by us."].)

The derivative claim must be evaluated in the context of the facts alleged, which are that the partnership has only two partners, Plaintiff and defendant Michelle Strong, who was also the general manager with responsibilities described in the FAC. (FAC ¶¶ 8-12, 37, 39.) Partners in a partnership generally owe fiduciary duties to each other and the partnership. (*See Enea v. Superior Court* (2005) 132 Cal.App.4th 1559, 1564.) "The elements of a cause of action for breach of fiduciary duty are the existence of a fiduciary relationship, breach of fiduciary duty, and damages. [Citation omitted.]" (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 820.) Demurring defendants do not point to any element of a cause of action for breach of fiduciary duty that is omitted from the allegations of the fourth cause of action.

As to the lack of standing claim, Plaintiff alleges that he was and remains one of the two shareholders of Rocksteady, that he and Michelle Strong are the only two designated directors and are deadlocked to the extent they were ever properly appointed, that Michelle Strong abandoned her position as general manager or CEO of Rocksteady in September 2025, that Plaintiff made demand for an accounting and other matters addressed in the complaint, that a copy of the FAC was delivered to Michelle Strong, and that any further demands would be futile. (FAC ¶¶ 35-48.) Without any contrary legal authority, the Court finds these allegations sufficient to meet the requirements of Corporations Code section 800 for Plaintiff to assert the derivative claim for breach of fiduciary duty and allege the futility of further demands on Rocksteady or its board of directors. The demurring parties' argument that the allegations of the fourth cause of action allege conclusions and not facts is not supported by the Court's review of the FAC.

4. Claims Against Lasalle Strong

The demurring parties raise for the first time in the reply as a ground for demurrer that the FAC does not allege any facts to support claims against Lasalle Strong. (Reply Section VI.) The Court will not consider this ground for the demurrer asserted for the first time in the reply. (*Jay v. Mahaffey, supra*, 218 Cal.App.4th at 1537-1538.) In any event, the FAC has express allegations regarding Lasalle Strong's obligations owed to Plaintiff supporting the claims against him. (*See, e.g.*, FAC ¶¶ 10, 24, 29 and Exhs. A and B.)

5. Personal Liability for Corporate Obligations

The demurring parties argue the FAC seeks to impose individual liability on defendants for corporate obligations. (MPA ISO Dem. Argument Section III.F.) The demurring parties do not point to specific causes of action or allegations of the FAC on which their argument is based. The Court's review of the FAC indicates the argument is not supported by the pleading. For example, the first cause of action alleges, among other things, that Rodriguez in effect made a loan to Michelle Strong and Lasalle Strong for their 50% share of the investment/capital contribution for the acquisition of the business which they agreed to repay under the terms of the partnership agreement. (FAC ¶¶ 8-10 and Exh. A.) This alleges a personal liability of the defendants.

6. Conclusion as to Second Ground for Demurrer

For the reasons set forth, the demurrer on the ground that the causes of action of the FAC fail to state a cause of action is **overruled**.

C. The FAC Is Uncertain

The demurring parties argue that the allegations of the FAC are vague as to "dates, amounts, and conduct." (MPA ISO Dem. Argument Section III.D.) The argument is unsupported by reference to any specific paragraphs or allegations of the FAC defendants contend are vague. To the extent there is any uncertainty, the uncertainty is not sufficient to warrant sustaining the special demurrer to the FAC on this ground, as demurring parties can conduct discovery to further investigate the basis of the claims. (*Lickiss v. Financial Industry Regulatory Authority, supra*, 208 Cal.App.4th at 1135; *A.J. Fistes Corp. v. GDL Best Contractors, Inc., supra*, 38 Cal.App.5th at 695.) The special demurrer for uncertainty is **overruled**.

21. 9:01 AM CASE NUMBER: C25-01113

CASE NAME: RANA SINGH VS. KANWAR SINGH

***HEARING ON MOTION FOR DISCOVERY COMPEL INSPECTION AND PRODUCTION OF THE ACCOUNTING DATABASES FROM DEFENDANTS AND FOR MONETARY SANCTIONS**

FILED BY: SINGH, RANA

TENTATIVE RULING:

Appearance required.

22. 9:01 AM CASE NUMBER: C22-01835

CASE NAME: MICHAELA STRAZNICKA VS. REYNA HIGUERA

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF MICHAELA STRAZNICKA'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET 4**

FILED BY: BUILDING SERVICES/SYSTEM MAINTENANCE, INC.

TENTATIVE RULING:

Appearance required.

23. 9:00 AM CASE NUMBER: C24-02339

CASE NAME: JUDY WOBLESKI VS. CITY OF WALNUT CREEK

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

The case management conference is continued to January 14, 2026 at 8:30 a.m. in Department 34.

The case is assigned to Department 34 for all purposes as of January 5, 2026.